average of eight Andamanese crania. When I think of the events that unfolded on 13 December 2001, I cannot but help think of Galton's photo-composites, and his attempts at deducing the extent of criminality in a given population by producing an average image based on the statistical relationships of the distance of their noses from their chins. Remember how Mr Advani, the then home minister, said on 13 December that the slain 'terrorists' 'looked like Pakistanis'. Perhaps he had an image of the 'average' Pakistani stored in the database in his cranium, with which he could compare the features of the dead men and come to this remarkable conclusion. Afzal's indictment, too, is an instance of the photo-compositing method of jurisprudence. He is a Kashmiri Muslim man of a certain age, he once was a JKLF activist, he moved often between Srinagar and Delhi for reasons to do with his business. It goes like this—you take any Kashmiri Muslim man of a certain age, and they should look and sound adequately Kashmiri, you identify the fact that they may sympathize or may once have sympathized with the movement to rid Kashmir of brutal military occupation (which is not hard to do, because most human beings would want an end to the particular oppressions that beset them), you zero in on the fact that he moved between Delhi and Srinagar with some frequency, and you mix these facts together to produce the face of a terrorist. There are thousands of such faces, and what matters is not individual culpability in a given act, or even whether a person was coerced or bludgeoned or cajoled into participating in a chain of events, but that he should 'look' the part. His face should be an echo of the 'composite' of the visage of the terrorist that we have learnt to see in our heads.

So much so that when the judges see Afzal, they also see Maqbool Butt, the Kashmiri man whose hanging on 11 February 1984, precipitated by a crime (the assassination of the Indian diplomat Ravindra Mhatre in Birmingham) that he did not commit, was one of the sparks that stoked the ongoing Kashmir uprising. Maqbool Butt, who spent long years in Indian and Pakistani prisons, was like Afzal dogged by the persistent shadow of his entanglement in Indian (and Pakistani) intelligence manoeuvres. Butt had been sentenced to death many years previously for the alleged murder of an Indian military officer during the prehistory of the insurgency in Kashmir in the 1960s, when he had first started a ragtag band of partisans called the National Liberation Front. Subsequently, he may well have come under the shadow once again of Indian intelligence outfits, who used him, it is alleged, to mastermind the hijack of the Indian Airlines plane Ganga in 1971 (a